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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

**NATIONAL ELECTRIC POWER REGULATORY AUTHORITY
STANDARDS OPERATING PROCEDURES (SOPS) FOR INSPECTION,
EXAMINATION AND PROVISION OF COPIES OF DOCUMENTS, 2015**

NOTIFICATION

Islamabad, the 9th March, 2015

S.R.O. 201 (I)/2015.— In exercise of powers conferred on it by clause (i) of Sub-Section (2) of Section 7 and sub-sections (1) & (2) of section 43 of the Regulation of Generation, Transmission and Distribution of Electric Power Act, 1997 (Act XL of 1997) read with rules 24 and 25 of NEPRA Tariff (Standards & Procedure) Rules, 1998, the National Electric Power Regulatory Authority hereby makes and issues the following Standards Operating Procedures to provide for the inspection, examination and provision of copies of records of NEPRA.

PART-I

1. Short title and commencement.— (1) This document may be called the National Electric Power Regulatory Authority Standards Operating Procedures (SOPs) for Inspection, Examination and Provision of copies of documents, 2015.

(823)

(2) It shall come into force from the date of notification in the official gazette.

2. **Definitions.**—(1) In these Standards Operating Procedures, unless there is anything repugnant in the subject or context,

- (a) “Act” means the Regulation of Generation, Transmission and Distribution of Electric Power Act, 1997 (XL of 1997);
- (b) “Application” means a request made by any person seeking inspection or copy of any document in possession of the Authority;
- (c) “Authority” means the National Electric Power Regulatory Authority established under the Act;
- (d) “Document” means any petition, application, complaint, RFP or any correspondence filed before the Authority by any person under the provisions of the Act and the Rules including the annexure; any reply, comments, intervention request or rejoinder including the annexure filed in that regard and the decisions; order, determinations, instructions or documents issued by the Authority excluding the noting on files, minutes of meetings and working papers prepared by the officers of the Authority in the discharge of their duties.
- (e) “Party” means a party to the proceedings conducted under NEPRA Act and Rules and Regulations made there under.
- (f) “Registrar” means an officer of the Authority duly authorized to receive and issue documents on its behalf and who for the purposes of inspection and provision of copies of record shall be the focal person to be contacted.
- (g) “RFP” means request for Proposal filed before the Authority for approval;
- (h) “Rules” means the rules framed by the Authority under section 46 of the Act;
- (i) “Working hours” means a period from 8.00 A.M to 4.00 PM daily with a break from 1.00 PM to 2.00 PM except on Saturdays, Sundays and other holidays whether notified by the Federal Government or by Authority itself.

(2) Words and expressions used but not defined in these SOPs shall have the same meaning as in the Act and the Rules.

PART-II

CONFIDENTIALITY

3. All documents in possession of the Authority shall be in the custody of the Registrar Office located in NEPRA Tower, G-5/1, Ataturk Avenue (East) Islamabad. Each department of Authority shall maintain the record files, which shall be shown/presented to the party on request through Registrar Office, which shall be the focal point for the purpose.

4. All documents in possession of the Authority shall; during working hours, be open for examination/inspection or for getting a copy thereof except those declared to be confidential by the Authority. Provided that certified copies shall be issued in respect of only those documents which are either generated by the Authority itself or those filed in original by any party. The copy of any other document not filed in original before the Authority may be issued without certification and with a caveat that it is as it is filed before the Authority.

5. For the purposes of confidentiality; it is hereby declared that "noting on the files", "minutes of meetings" and "working papers prepared by professionals of Authority" shall be confidential and shall not be open for inspection/examination and for providing copies thereof. In addition; any other document could be declared to be confidential upon a request by a party to the proceedings and any such other document could be declared as confidential by the Authority through an order while giving reasons thereto.

PART-III

PUBLIC DOCUMENTS

6. Following documents are hereby declared to be the public documents unless declared "confidential" by the Authority:-

- a. Petitions for determination, revision or modification of tariff along-with all annexure, contracts and other documents including queries of stakeholders and replies/rejoinders thereof from the petitioner.
- b. License applications including applications for Licensee Proposed Modification (LPM) alongwith all documents attached.

- c. Requests for approval of Power Purchase Agreements including requests for permission to negotiate the power purchases alongwith allied documents submitted.
- d. All Determinations, decisions and Orders of the Authority except the Minutes of the Authority Regulatory Meetings and Case Officer Reports.
- e. All the replies, comments, intervention requests and rejoinders alongwith the annexure to the extent possible shall also be placed on NEPRA's website and such information shall be kept there till the final decision of the case.
- f. Notices and proceedings commenced under NEPRA (Fines) Rules, 2002.
- g. Memorandum of appeals filed before NEPRA under sections 12(A) and 38(3) of NEPRA Act and Orders and decisions of NEPRA given thereon.
- h. Review Petitions alongwith orders and decisions of NEPRA given thereon.
- i. The reports of any inquiry or audit conducted by NEPRA as to the affairs of any of its licensees may not be a public document, however, if the consequences of any such audit are to be reflected in the consumer-end-tariff, then the reports may be open to inspection for public and copies whereof could also be provided. If as a result of any such inquiry/audit, the Authority proposes to initiate any action against its licensees, then such licensee shall be entitled to obtain a copy of the report.
- j. Request for Proposals.

PART-IV

HEARINGS AND TRANSCRIPTS

7. The hearings conducted by the Authority are not public hearing except the hearing for modification in the Tariff Standards and Procedures. In normal hearings, only the parties to the proceedings may have the right of participation and audience, however, as per present practice, all such hearings are open for public, therefore, this practice would continue for the purposes of transparency of proceedings.

8. A party to the proceedings conducted for determining/revision/modification of tariff or for grant/modification of licence may request the Authority for preparation of the transcript and copy of such transcript could be provided upon payment of prescribed fee.

9. The transcripts of the hearings shall be recorded/prepared to the extent of above two types of hearings; however, it will be the discretion of the Authority to get prepared the transcript of any other hearing.

10. The transcript of the hearing could be obtained by a person upon whose request, the hearing was recorded.

PART-V

ANNUAL REPORTS AND STATE OF INDUSTRY REPORTS

11. Under section 42 of the NEPRA Act, the Authority has to submit the annual reports to the Council of Common Interests and to the Federal Governments; on the conduct of its affairs as well as a report on the state of electric power services in the country.

12. Copies of all such reports shall be placed on NEPRA website for information to all concerned.

13. Copy of such reports or a part thereof could be provided by NEPRA upon payment of usual fee.

PART-VI

PLACING THE RECORD ON WEBSITE OF NEPRA

14. All the petitions for determinations, modifications or revision of tariff, applications for grant of licenses, all the replies, comments, intervention requests and rejoinders alongwith the annexure and other requests filed under NEPRA Rules and Regulations; to the extent possible shall also be placed on NEPRA's website and such information shall kept there till the final decision of the case.

15. The Authority may also order for publishing any significant decision/order in the electronic/print media for information of all stakeholders.

16. Where NEPRA has commenced any proceedings for imposition of fine or suspension/revocation of licenses, a notice of such proceedings may also be placed on NEPRA's website for information of all concerned.

17. To the extent possible; the orders and decisions of NEPRA given while hearing review petitions or appeals shall also be placed on NEPRA's website for information to all concerned.

PART-VII

INSPECTION/EXAMINATION OF DOCUMENTS

18. The inspection of records of decided cases will be allowed only under the orders of the Registrar/Deputy Registrar concerned.

19. Records of pending cases will be open for inspection/examination of parties or their authorized agents subject to approval by Registrar/Deputy Registrar concerned. Provided that the inspection/examination of a record will not be permitted on the date fixed for hearing without the special order of the Chairman/Vice Chairman.

20. Any person desirous to inspect/examine the record may file an application as per format prescribed as Annexure-I for inspection/examination of documents during working hours.

21. Applications must distinctly specify the record of which inspection is desired and shall be presented to the Registrar/Deputy Registrar between 8.00 to 10.30 AM.

22. The application shall be relevant for one case file and if more than one files are to be inspected; then separate applications shall be filed.

23. The application(s) shall be made alongwith a fee of Rs. 500/- per case.

24. The Registrar Office shall examine the request and ascertain as to which is the relevant Department/Office for the concerned record. If the record is relevant for the Registrar Office; then the relevant record shall be shown for examination/inspection to the person concerned.

25. In case the requisite record pertains to some other Department/Office of NEPRA then the office of Registrar may call for such record from the concerned Department/Office and cause it to be examined by the person concerned.

26. During the course of examination; the concerned official either from the Registrar Office or other concerned Department shall remain present during the examination/inspection of the record.

27. No mark shall be made on any record or paper inspected, and copying of any such record in lead pencil may be made.

28. The person inspecting/examining the record may take notes in lead pencil and an entry in the relevant register as to time of start and end of examination/inspection is to be recorded. Such entry shall be signed by the person inspecting/examining the record and shall be countersigned by the concerned official of NEPRA who was present at the time of inspection/examination.

PART-VIII

GRANT OF COPIES OF RECORD

29. Any person interested to obtain a copy of record may apply for a same on an application as per format prescribed as Annexure-II made to the Registrar/Deputy Registrar alongwith fee so prescribed.

30. Every application for a copy of record shall contain the following particulars, namely,-

- (a) the name of the applicant
- (b) Case No. with brief title of the same.
- (c) if the case is pending, the date of filing; if any
- (d) if the case is decided, the date of decision
- (e) where the information referred to in clause (b) and (c) is not available to the applicant, such other information as may be sufficient to enable the case to be identified and traced;
- (f) the nature of the document, a copy of which is required;
- (g) the name and full postal address of applicant.

31. Upon the presentation or receipt by post of an application for copy, the registrar office shall –

- (a) endorse or cause to be endorsed thereon the date of presentation;
- (b) initial the endorsement;
- (c) cause the application to be registered as hereinafter provided; and

32. The application will then be examined and an order passed thereon as hereinafter prescribed.

33. If the application is in proper form and is one which may properly be granted under these SOPs, order will be recorded thereon directing the copy to be made and delivered.

34. If the application is not in proper form or is one which may not properly be granted under these SOPs, an order will be recorded thereon specifying the requirements to be complied with and directing its return to the applicant, or refusing the application and directing that it be filed, according to the circumstances of the case.

35. Certified copies could be provided with reference to the record which is either filed in original by the parties concerned before NEPRA.

36. For any other record, uncertified copies could be provided by NEPRA.

PART-IX

GENERAL

37. The Registrar NEPRA is declared to be the spokes person for all information required and the concerned IT professionals shall provide full assistance to the Registrar for uploading the relevant documents on NEPRA's website.

[No. NEPRA/R/LA (LLP)/SOPD/2013.]

SYED SAFEER HUSSAIN,
Registrar.

ANNEXURE-I**FORM OF APPLICATION FOR INSPECTION/EXAMINATION OF RECORD**
[Clause 20]

The Registrar
National Electric Power Regulatory Authority (NEPRA)
NEPRA Head Office, Ataturk Avenue (East),
Sector G-5/1, Islamabad

Subject: **APPLICATION FOR INSPECTION OF RECORD**

I, [Name of the applicant] _____, [Designation], [Company Name], hereby apply to the National Electric Power Regulatory Authority for inspection/examination of following record in term of Clause 20 of NEPRA Standards Operating Procedures (SOPs) for Inspection, Examination and Provision of Copies of Documents, 2015:

- (a) Title and No. of the case to be inspected: _____
(b) List/details of Record to be inspected: _____

2. A bank draft No. _____, in the sum of Rupees 500/-, in the name of National Electric Power Regulatory Authority, being the non-refundable fee is attached herewith.

Signature: _____

Name & Address: _____

CNIC No: _____

Contact No: _____

Dated: _____

.....

[FOR OFFICIAL USE ONLY]

Received application from _____ on _____ at _____ hrs. Being relevant, the application forwarded to _____ Department to mention date and time to communicate to the applicant to attend NEPRA Office for inspection of Record.

Office of Registrar

Department

The applicant may be advised to attend NEPRA office on _____ at _____ hrs to inspect the record.

Department

Registrar Office

ANNEXURE-II**FORM OF APPLICATION TO OBTAIN COPY OF DOCUMENTS**
[Clause 29]

The Registrar
National Electric Power Regulatory Authority (NEPRA)
NEPRA Head Office, Ataturk Avenue (East),
Sector G-5/1, Islamabad

Subject: **APPLICATION FOR COPY OF DOCUMENT(S)**

I, [Name of the applicant] _____, [Designation], [Company Name], hereby apply to the National Electric Power Regulatory Authority for provision of copies of following documents in term of Clause 29 of NEPRA Standards Operating Procedures (SOPs) for Inspection, Examination and Provision of Copies of Documents, 2015:

- (i) _____
(ii) _____
(iii) _____
(iv) _____

2. It is hereby certified that all the charges incurred in this regard including the courier chagres will be paid on demand.

Signature: _____
Name & Address: _____
CNIC No: _____
Contact No: _____

Dated: _____

[FOR OFFICIAL USE ONLY]

Received application from _____ on _____ at _____ hrs. Being relevant, the application forwarded to _____ Department to provide the copies of the requested documents.

Office of Registrar

Department

[Observation, if any of the relevant Department]

The attached documents may be transmitted to the applicant after receiving the requisite fee.

Department

Registrar Office